

Chadwick v. Doleman. — Thus, in the leading case of *Chadwick v. Doleman* (c), a father on his marriage settled an estate to the use of himself for life with remainder (subject to a jointure) to the use of trustees (upon trust within six months after his decease to raise 4,000*l.* for younger children's portions as the father should appoint, or in default of appointment to be divided amongst the younger children), with remainder to the use of the first and other sons in tail. There were several children of the marriage, viz. *Humphrey* the eldest, and *Thomas, John, Lewis, Ann, and Dorothy*. By a deed, dated in 1686, the father appointed the 4,000*l.*, giving 2,600*l.* part thereof to Thomas the *second* son on the occasion of his marriage, and after this Humphrey the eldest son died in his father's lifetime without issue, and thereupon the father appointed the 2,600*l.* amongst his younger children other than Thomas. On the death of the father the estate devolved on the second son Thomas, and then the question arose whether the first or the second appointment was good, or in other words whether Thomas was entitled to the 2,600*l.* as well as the estate. The Lord Keeper said he admitted that Thomas at the time of the appointment was a person capable of taking, and was a younger child within the power, but that this was a defeasible appointment, not from any power of revoking, or upon the words of the appointment, but from the capacity of the person. He was capable of taking at the time of the appointment made, but that was *sub modo* and upon a tacit or implied condition, that he should not afterwards happen to become the eldest son and heir, so that he had as it were only a defeasible capacity. And it was, therefore, adjudged that Thomas, who took the estate, was not also entitled to the 2,600*l.*

4. **Eldest son taking place of younger son.** — In this case the second son by succeeding to the estate and so becoming the eldest was deprived of any share in the portions for [*388] *younger children, and no claim appears to have been put forward on behalf of Humphrey the eldest son to stand in the place of a younger son. But it has since